

13. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
*HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: SKINSPIRIT ESSENTIAL, LLC,
TENTATIVE RULING:

See Line 11, above.

14. 9:00 AM CASE NUMBER: C23-01698
CASE NAME: ZHI HUANG VS. HUTCHINSON MOTORS, INC.
*HEARING ON MOTION IN RE: TO APPROVE PAGA SETTLEMENT
FILED BY: HUANG, ZHI H
TENTATIVE RULING:

Summary

Plaintiff Zhi Huan' ("Plaintiff") Motion for Approval of the PAGA Settlement is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.** This settlement is for the PAGA claim for civil penalties and is not a class settlement and does not release the individual wage claims of affected employees other than Plaintiff.

Background

Plaintiff filed this Motion for Approval PAGA Settlement. Plaintiff exhausted all administrative remedies required to bring the PAGA claims asserted in this action and is authorized to act as a private attorney general with respect to the PAGA claims being released under the terms of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Settlement Agreement"). The California Labor Workforce Development Agency ("LWDA") was provided with notice of the settlement and the motion for approval of the settlement via its online process and no objection has been received to the settlement or the motion from the LWDA.

Plaintiff Zhi H. Huang ("Plaintiff") seeks approval of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Agreement")¹, which if approved, would provide valuable monetary relief for approximately 55 "Aggrieved Employees," defined as all individuals who are or previously were employed by Defendant Hutchinson Motors, Inc. ("Defendant") in California at any time between May 3, 2022 to May 3, 2023 ("PAGA Period"). Agreement at §§ I(B); I(S); III(A)(3).

This is only a settlement of the PAGA claim for civil penalties and is **not** a class settlement and **does not** release the individual wage claims, if any, of the affected employees other than Plaintiff herself. Cal. Lab. Code § 2699(g)(1); *Iskanian v. CLS Transportation* (2014); 59 Cal. 4th 348, 381 ZB, N.A. v. *Superior Court*, (2019) 8 Cal. 5th 175, 182 (unpaid wages are not recoverable under PAGA).

The terms of this settlement agreement are as follows:

1. The PAGA Settlement provides for a Gross Settlement Amount in the total sum of \$100,000.00, which includes: i) the Net Settlement Amount; ii) Plaintiff's Counsel Award in the amount of \$35,826.28, comprised of attorneys' fees in the amount of \$33,333.33 and reimbursed litigation expenses in the amount of \$2,492.95; and iii) Settlement Administration

Costs of \$4,000.2. Awarding Class Counsel attorneys' fees in the amount of \$83,333.33 and reimbursement of litigation costs not to exceed \$25,000.00;

2. The Net Settlement Amount is the amount remaining from the Gross Settlement Amount after the deduction of the Settlement Administration Costs and Plaintiff's Counsel Award.
3. The Administrator will be Apex Class Action LLC.
4. The sum of any settlement checks not cashed within 180 days, or the extended deadline as provided in the Settlement Agreement, will be transmitted to the State Controller's Unclaimed Property Fund in the name of the Aggrieved Employees who did not cash their checks.

Analyses

Legal Standards

Labor Code § 2699(s) requires the Court to "review and approve any settlement of any civil [PAGA] action filed pursuant to this part. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court." Further, the Court in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77 stated that "the trial court must review and approve a PAGA settlement (§ 2699, subd.(l)(2)), and the Supreme Court has in dictum referred to this review as a safeguard." (Citing *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 88; internal quotations omitted.) "The Supreme Court has also observed that trial court approval ensures that any negotiated resolution is fair to those affected," leading the Court in *Moniz* to determine that "adoption of a standard of review for settlements that prevents fraud, collusion or unfairness, and protects the interests of the public and the LWDA in the enforcement of state labor laws warranted." (*Moniz*, supra, 72 Cal.App.5th at 77; citing *Williams v. Superior Court* (2017) 3 Cal.5th 531, 549; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1800-1801. In other words, "[i]n review and approval of a proposed settlement under section 2699, subd. (l)(2), a trial court thus must scrutinize whether, in resolving the action, a PAGA plaintiff has adequately represented the state's interests, and hence the public interest." (*Moniz*, supra, 72 Cal.App.5th at 88.) Consistent with the foregoing authorities, the Parties requested the Court to review and approve the settlement of the PAGA claims and the PAGA Payment to be paid as part of the proposed Settlement.

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

The Court has reviewed the proposed gross settlement and determines that the settlement amount is fair and reasonable. This determination is based on a review of the estimated penalties for meal period violations, estimated penalties for rest period violations, estimated liability for unreimbursed business expenses, estimated liability for inaccurate wage statements, and a general review of the

terms of settlement.

The Court also has reviewed the request for Plaintiff's award of attorney's fees in the amount of \$33,333.33, which is one-third of the gross settlement. This amount is fair and reasonable, given it is a discounted award from the original amount sought by counsel and includes expenses up to \$15,000.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

Ruling

The motion is **granted**. The Court will execute and file the Proposed Order lodged on December 10, 2025. Plaintiff's counsel is ordered to serve notice of entry of the Order to all parties on the service list. No appearance is required at the April 29, 2026 hearing.

15. 9:00 AM CASE NUMBER: C23-03089
CASE NAME: DIEGO DEL CASTILLO VS. THE ANCHOR SHACK DIVE AND TRAVEL, LLC
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: JOHNSON, JESSICA
TENTATIVE RULING:

Plaintiff Jessica Johnson's Motion for Leave to File First Amended Complaint filed on February 18, 2026 is not opposed and is **granted**. Accordingly, the Court make the following orders:

1. Plaintiff shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than ten (10) days from the date of the hearing.
2. Plaintiff shall file and serve the proposed First Amended Complaint attached to the Declaration of Counsel Mark Venardi no later than fifteen (15) days from the date of the hearing of this motion and file a proof of service with the Court.
3. Answers are due no later than thirty (30) days from the service.

16. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The motion to strike and dismiss the First Amended Complaint (FAC), filed by Qasim Tarin specially appearing, is **denied**.

Background

On April 2, 2024, Plaintiff Emily Louise Cross, in pro per, filed a signed complaint for Wrongful Eviction naming "Qasim Tarim" as defendant. The complaint alleges that on April 14, 2023, Plaintiff was locked out of a commercial building located at 505 W. 2nd Street, Antioch, California, and refers in its body